

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Civil Action No.: 1:21-cv-01408-DDD-SBP Date: September 23, 2024
Courtroom Deputy: Robert R. Keech Court Reporter: Tammy Hoffschildt

Parties:

SHELLEE LAWSON,

Plaintiff,

v.

SAFECO INSURANCE COMPANY OF AMERICA,

Defendant.

Counsel:

Gregory S. Rich
Anne K. McMichael

Holly C. White

COURTROOM MINUTES

TRIAL TO JURY (DAY 1)

9:10 a.m. Court in session. Jury present.

Court's opening remarks to prospective jurors.

9:18 a.m. Voir dire oath given.

9:20 a.m. Voir dire by Court commences.

9:30 a.m. Bench conference regarding jurors seeking to be excused for cause.

9:30 a.m. Voir dire by Court continues.

9:49 a.m. Bench conference regarding excusing jurors 100506999 and 100518667 for cause.

9:51 a.m. Voir dire by Court continues.

10:09 a.m. Bench conference regarding challenges for cause and counsel has none.

10:11 a.m. Voir dire by Plaintiff by Mr. Rich.

10:23 a.m. Voir dire by Defendant by Ms. White.

10:36 a.m. Bench conference regarding challenge for cause as to juror 100477945 and reading the verdict in the case from last week.

Court's remarks to jury regarding taking a break.

10:39 a.m. Court in Recess.

11:19 a.m. Court in Session. Jury present.

Voir dire by Court continues.

11:22 a.m. Bench conference regarding juror 100477945 and challenge for cause is denied.

Court outlines protocol for peremptory challenges.

11:24 a.m. **Court in recess.**

11:33 a.m. **Court in session.**

Challenges for Cause:

- 1) 100506999
- 2) 100518667

Peremptory challenges by Plaintiff:

- 1) 100485945
- 2) 100476652
- 3) 100473868

Peremptory challenges by Defendant:

- 1) 100498616
- 2) 100485108
- 3) 100486907

11:36 a.m. Jury sworn to try:

- | | | | |
|----|-----------|----|-----------|
| 1) | 100482756 | 2) | 100508060 |
| 3) | 100501197 | 4) | 100504799 |
| 5) | 100484606 | 6) | 100516871 |
| 7) | 100479094 | 8) | 100501292 |
| 9) | 100520360 | | |

Discussion regarding stipulated exhibits.

11:39 a.m. Court in recess.

1:03 p.m. Court in session. Jury not present.

Discussion regarding exhibits that will go to the jury during deliberations and method for admitting exhibits.

1:09 p.m. Jury enters.

1:10 p.m. Court reads preliminary jury instructions.

1:24 p.m. Opening statement by Plaintiff by Mr. Rich.

1:33 p.m. Opening statement by Defendant by Ms. White.

1:54 p.m. Bench conference regarding objection by Plaintiff to opening statement by Defendant.

1:56 p.m. Plaintiff's witness **Shellee Sue Lawson** sworn.

Direct examination by Plaintiff by Mr. Rich.

Exhibit(s) identified: 1, 4, 5, 9, 10, 55, 46

Exhibit(s) 1, 4, 5, 9, 10, 55, 46 RECEIVED.

2:41 p.m. Court in recess.

3:02 p.m. Court in session. Jury enters.

Plaintiff's witness **Shellee Sue Lawson** resumes.

3:03 p.m. Direct examination continues by Plaintiff Mr. Rich.

Exhibit(s) identified: 41, 13, 27, 24, 41, 31, 38, 39, 40, 42, 41

Exhibit(s) 41, 13, 27, 24, 41, 31, 39, 40, 42 RECEIVED.

4:21 p.m. Cross examination by Defendant by Ms. White.
Exhibit(s) identified: 2, 3, 4, 5, 6, 8, 10, 12, 13, 14, 15, 16

Exhibit(s) 2, 3, 12, 13, 14, 15, 16 RECEIVED.

Jury excused until Tuesday, September 24, 2024, at 9:00 a.m.

4:53 p.m. Court in recess. **TRIAL CONTINUED. TOTAL TIME: 5:09**